



SPONSOR: Sen. Pinkney & Sen. Townsend & Rep. Romer &
Rep. Bush & Rep. Lambert & Rep. Morrison
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Reps. Bolden, Gorman, Neal, Phillips, Snyder-Hall,
Wilson-Anton

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 8

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO PROBATION AND SENTENCING PROCEDURES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 4332, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4332. Conditions of probation or suspension of sentence; house arrest for offenders.

4 (a)(1) ~~The Department may adopt standards concerning the conditions of probation or suspension of sentence~~
5 ~~which the court may use in a given case. Except as provided under § 4204(c)(10) of this title, the standard conditions of~~
6 ~~probation or suspension of sentence that apply to an individual on probation are as follows:~~

7 a. The individual on probation may not commit a new criminal offense or motor vehicle offense not
8 subject to voluntary assessment under § 709 of Title 21 during the supervision period.

9 b. The individual on probation shall report any new arrest, conviction, or police contact within 72 hours
10 to the individual on probation's probation and parole officer.

11 c. The individual on probation shall report to the individual's probation and parole officer at such times
12 and places as directed and permit the probation and parole officer to enter the individual's home and visit the
13 individual's place of employment.

14 d. The individual on probation must have authorization from the individual's probation and parole officer
15 to leave this State or the individual's approved state of residence.

16 e. The individual on probation shall report any changes of residence or employment within 72 hours to
17 the individual's probation and parole officer.

18 f. If the individual on probation is not a person prohibited under § 1448 of this title, the individual on
19 probation must have written approval from the individual's probation and parole officer to own, possess, or be in
20 control of any firearm or deadly weapon.

21 g. The individual on probation shall comply with any special conditions imposed at any time by the court,
22 Board of Parole, or the individual's probation and parole officer.

23 (2) The standard conditions ~~shall~~ apply in the absence of any other specific or inconsistent conditions imposed
24 by the court under this subsection.

25 (3) The presentence report may recommend conditions to be imposed by the court.

26 (4) Nothing in this chapter ~~shall limit~~ limits the authority of the court to impose or modify any ~~general or~~
27 ~~specific~~ standard or special conditions of probation or suspension of sentence.

28 (5) The Department may recommend and, by order, the court may impose and may at any time order
29 modification of any conditions of probation or suspension of sentence. Before any conditions are modified, a report by
30 the Department ~~shall~~ must be presented to and considered by the court.

31 (6) The court shall cause a copy of any order to be delivered to the Department and to the ~~probationer.~~
32 individual on probation.

33 Section 2. This Act takes effect 180 days after the Act's enactment into law.

SYNOPSIS

This Act codifies the standard conditions of probation to be used by the courts and the Department of Correction.

Author: Senator Pinkney